

From: Joyce Holmes
To: Bush, Jodi
Date: 2/13/04 8:20AM
Subject: annual report received

LQD received the 2003-2004 annual report for Permit 658, Mountain Cement Company - Weaver Limestone Quarry in Albany County on February 11, 2004.

Please review.

Thanks

CC: Hogg, Bill; Spackman, Lowell



MOUNTAIN
CEMENT COMPANY

Hand Delivered *JH GH*
BH 2-13-04
JH

MOUNTAIN CEMENT COMPANY

February 11, 2004

Mr. William Hogg
Department of Environmental Quality
Land Quality Division
Herschler Building
122 West 25th Street
Cheyenne, WY 82002

RE: Permit #658 2003-2004 Annual Report

Dear Bill:

Enclosed is Mountain Cement Company's Annual Report for the Weaver Limestone Quarry, permit no. 658. Note that there is a topsoil stockpile (TS-1) that has been inadvertently not reported in the previous reports. Also, topsoil stockpile TS-6 has been recalculated and estimated to be lower CY's than in the previous reports and corrected in this report.

Also included are two maps, one showing mining history (Map AR-1) and the other summarizing areas for reclamation performance bond calculations (Map AR-2).

If you have any questions, please contact me at Mountain Cement (monteb@mountaincement.net), Bill Sansing at (307)-745-4879 ext. 121 or Bob Kersey, ext. 135.

Sincerely,

Monte Buchanan
Quarry Intern

Attachment/enclosures



MOUNTAIN CEMENT COMPANY
PERMIT #658 WEAVER LIMESTONE QUARRY

ANNUAL REPORT
AND MINE AND RECLAMATION PLANS

FEBRUARY 28, 2003 to FEBRUARY 27, 2004

SUBMITTED TO:
WYOMING DEPARTMENT OF ENVIRONMENTAL QUALITY
LAND QUALITY DIVISION
HERSCHLER BUILDING
CHEYENNE, WYOMING

REPORT PREPARED:
FEBRUARY 27, 2004

PREPARED BY:
MOUNTAIN CEMENT COMPANY
5 SAND CREEK ROAD
LARAMIE, WY
(307)745-4897



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MAPS

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- Chain of Custody Record for Well Water Samples taken January 14, 2004
- Water Quality Report for Upgradient Groundwater Monitoring Well SEO Permit #P151433.
- Water Quality Report for Downgradient Groundwater Monitoring Well SEO Permit #P151434.
- Water Quality Report - Trip Blank Results

Land Quality Division
Districts I, II & III
Required Annual Report Information



FOR LARGE MINING OPERATIONS

RE: Wyoming Environmental Quality as Amended §35-11-411, Annual Report

1.
 - (a) Name of Permittee: **Mountain Cement Company**
 - (b) Address: **5 Sand Creek Road**
 - (c) Mining Permit Number: **Permit No. 658**
 - (d) Date of Permit Issuance (and any Amendment): **February 29, 1996**
 - (e) Mineral(s) Mined: **Limestone**
 - (f) State and Federal Mineral Lease: **None**
2. Time period covered by the report: **February 28, 2003 to February 27, 2004**
3. Mining:
 - (a) Tabulate acreage disturbed (by pits, roads, facilities, etc.) during the report period and illustrate on map.
2.2 acres disturbed during 2003-2004 report period
 - (b) Tabulate acreage affected to date by years and illustrate on map.
2.6 acres disturbed during 1996-1997 (entrance road)
2.6 acres disturbed during 1997-1998 (remaining haulroad)
14.0 acres disturbed during 1997-1998 (initial mining area)
17.1 acres disturbed during 2000-2001
23.4 acres disturbed during 2002-2003
2.2 acres disturbed during 2003-2004
8.1 acres affected on north side of pit for topsoil and spoil storage
3.9 acres affected during mining activity (total discrepancy affected acres)*
77.0 total acres disturbed since mine start-up
18.3 acres projected disturbance for the 2004-2005 reporting period
 - (c) Tabulate all topsoil stockpile volumes, date of stockpiling and illustrate on map.
500 CY stockpiled during 1996-1997 (TS-1 entrance road)**
1,000 CY stockpiled during 1997-1998 (TS-2 entrance road)
1,300 CY stockpiled during 1997-1998 (TS-3 remaining haulroad)
10,700 CY stockpiled during 1997-1998 mining area (TS-4)
10,150 CY stockpiled during 2000-2001 mining area (TS-5)
8,100* CY stockpiled during 2001-2002 mining area (TS-6)**
3,340 CY stockpiled during 2003-2004 mining area (TS-7)
35,090 CY of topsoil are currently stockpiled for reclamation use since mine start-up.

* A more accurate means of analysis (i.e. gps, mapping, etc.) revealed 3.9 affected acres discrepancy.

** This topsoil stockpile has been inadvertently not reported or shown in previous reports.

*** The total volume of topsoil stockpile TS-6 has been reported in error. The stockpile has been re-evaluated to be 8,100 CY. Last year this topsoil stockpile was reported to contain 9,450 CY in the report and 11,600 CY on the Annual Report map.

- (d) Tabulate all out-of-pit spoil volumes, dates of placement and illustrate on map.
- 15,000 CY stockpiled during 1997-1998 (OB-1)**
 - 3,500 CY stockpiled during 2000-2001 (OB-2)**
 - 20,000 CY stockpiled during 2002-2003 (incorporated into OB-1; 35,000 CY total)**
 - 21,500 CY stockpiled during 2002-2003 (incorporated into OB-2; 25,000 CY total)**
 - 20,000 CY stockpiled during 2002-2003 (OB-3)**
 - 0 CY stockpiled during 2003-2004 (all over overburden was returned to the northern active mining pit for reclamation preparation)**
 - 80,000 CY of overburden are currently stockpiled since mine start-up for reclamation use.**

- (e) Tabulate quantity of commodity mined by years.

0 tons 1996-1997

124,376 tons of limestone mined during 1997-1998

100,500 tons of limestone mined during 1998-1998

148,520 tons of limestone mined during 1999-2000

361,150 tons of limestone mined during 2000-2001

530,950 tons of limestone mined during 2001-2002

595,530* tons of limestone mined during 2002-2003

405,027 tons of limestone mined during 2003-2004 (as of February 5th, 2004)

2,266,053 tons of limestone mined since mine start-up.



- (f) Describe any new construction during the report period and illustrate on map; include:

1. Shop facilities, erection sites.

None

2. Roads

None

3. Culverts

None

4. Diversion ditches, collector ditches, interceptor ditches, etc.

None

5. Sediment ponds, containment ponds.

None

6. Monitoring sites.

Two monitoring wells were installed in the mining area (upgradient and down gradient). SEO Permit #P151433W & #P151434W respectively.

- (g) Describe any environmental problem areas and a proposed plan for mitigating them. Illustrate on map; include:

1. Pit stability problems.

None

2. Subsidence.

None

3. Accidental water discharge, dam failure, etc.

None

4. Slumping or sliding.

None

5. Revegetation problem areas.

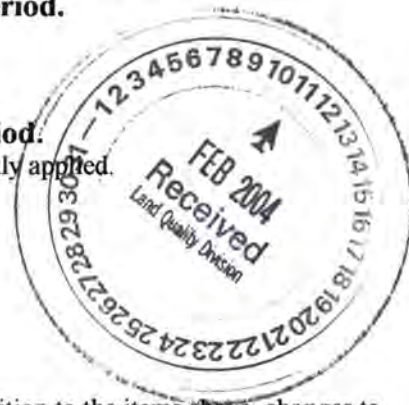
None

* 513,823 tons of limestone mined was inadvertently reported in error last year. 595,530 tons actually reflects the amount of limestone mined during the 2002-2003 report period.

4. Reclamation:

- (a) Tabulate the acreage completed during the report period and illustrate on map. Distinguish between:
1. Backfilled, graded, and contoured. Including date of approval for coal permits. **Back fill of material has begun along the north wall of the pit, but not graded or contoured.**
 2. Topsoiled. **None**
 3. Seeded. **None**
 4. Reseeded. **None**
 5. Indicate where special construction or reclamation practices were used such as for sand bodies or alluvial material.
- (b) Submit a map showing the reconstructed contours. The map must be the same scale and contour interval as the PMT map in the approved permit.
None Completed.
- (c) Tabulate acreage reclaimed (seeded with permanent seed mix) to date by years and illustrate on map.
No seeding was performed during the 2003-2004 report period.

- (d) Describe reclamation procedures used during the report period:
No reclamation occurred during the 2003-2004 report period.
1. Depth of topsoil applied. Indicate whether from stockpile or directly applied.
 2. Type of seed used for seeding during the report period.
 3. Dates of seeding during the report period.
 4. Seeding procedures used.
 5. Rate of seed application.
 6. Type and rate of any fertilizer applied.
 7. Type and rate of mulch applied.
 8. Rate of irrigation water applied.
 9. Any deviations to the approved reclamation plan including, in addition to the items above, changes to the contour or location of post mining features.
- (e) Describe results of previous revegetation efforts; include:
1. Types of seed that have germinated and are growing. **None**
 2. Types of seed that are not growing successfully. **None**
 3. Areas experiencing problems with weeds and weed types. **None**
 4. Significant erosional problems. **None**
 5. Areas if unsuitable overburden on the surface. **None**
 6. Procedures used or proposed to correct these problems. **N/A**
- (f) Summarize the actual reclamation costs incurred during the report period. Costs should be itemized for each operation (i.e., grading, topsoil replacement, seeding, etc.) and for each type of disturbance (i.e., spoil, haul roads, facilities removal, etc.) on a per-acre basis.
Not Available



5. Describe in detail mining plans for the coming year including revised time schedules and all proposed deviations from previously approved plans. Acreages should be tabulated and illustrated on a map.

See Mine and Reclamation Plan Summary and Maps AR-1 & AR-2.

6. Describe in detail reclamation plans for the coming year including revised time schedules and deviations from previously approved plans. Acreages should be tabulated and illustrated on a map.

See Mine and Reclamation Plan Summary and Maps AR-1 & AR-2.

NOTE: On items 5 and 6 above, any proposed deviation from the approved mine and reclamation plan must be described in detail. The proposed mining and reclamation plans will be reviewed and the operator will be notified if further information is required. "Significant" deviations will require permit revision application (Form 11) and public notice pursuant to Chapter VII Section 2 of Land Quality Division Noncoal Regulations.

See Mine and Reclamation Plan Summary.

7. Describe in detail all monitoring activities during the report period, summarize the data, describe procedures to correct any noted problems and deviations from previously approved methods, including:
- | | |
|---|---|
| (a) Groundwater analyses. | Two wells sampled for analyses during the 2003-2004 reporting period. See Tables V, VI, and attachments for groundwater characteristics summary. |
| (b) Surface water analyses and discharge data. | None Available |
| (c) Precipitation data. | None Available |
| (d) Subsidence monitoring. | None Available |
| (e) Overburden analyses. | None Available |
| (f) Topsoil quantities – compare calculated and actual. | None Available |
| (g) Vegetation data. | None Available |
| (h) Wildlife data. | None Available |
| (i) A map showing and identifying monitoring locations. | See Annual Report Map for Monitoring Well locations. |
8. Operator's Reclamation Performance Bond Estimate as required by Wyoming Statute §35-11-417. Reclamation cost estimates should be itemized in detail to reflect the actual estimated costs of reclaiming all lands which have been affected to date and those lands to be affected during the next report period. Costs must reflect procedures as specified in the approved mine and reclamation plan. The estimated cost of dismantling and disposal of all facilities and structures must be included. Salvage value will not be used to offset bonding requirements. Reclamation projected for the coming year will not be used to offset bonding requirements. Pit backfill costs must reflect actual yardages to be moved. Actual yardages to be moved will reflect the removal or placement of additional material to correct any deviations between the PMT map and the map submitted for part 4.(b).
- See attached Table II and Appendix for estimated reclamation costs.**
9. Supply any additional information as requested by the Division to:
- | | |
|-------------------------------|-------------|
| (a) Notices of violation | None |
| (b) Orders | None |
| (c) Permit stipulations; and | None |
| (d) Other special conditions. | None |
10. All drill holes used for immediate developmental expansion of the advancing pit(s) shall be tabulated by location and depth and shown on the mining plan map. Pursuant to W.S. §35-11-404(e), all drill holes used for exploration shall be reported to the LQD Abandoned Drill Hole Program Supervisor and the State Engineer. **None**

ANNUAL REPORT MAPS

1. Maps must be clear and legible contour maps or recent aerial photos. The preferred scale is 1" = 500'.
2. Map sheets should be of a reasonable size, generally not to exceed 48" on a side.
3. Maps must have a title block with:
- (a) Map title.



- (b) Name and address of permittee.
- (c) Permit and amendment numbers.
- (d) Annual report period.
- (e) Scale, north arrow, contour interval, date of photography, etc.

4. All maps must show:

- (a) Legal subdivisions – section, township, and range lines clearly labelled.
- (b) Permit area boundary clearly shown and labelled.
- (c) Amendment areas clearly shown and labelled.

5. The following features should all be clearly identified:

- (a) Topsoil stockpiles (numbered)
- (b) Settling ponds and sediment control structures.
- (c) Haul roads.
- (d) Pits identified by location, name, number, etc.
- (e) Ramps (numbered)
- (f) Out-of-pit spoil dumps including date of initial placement of material (if permanent, give approval date).
- (g) All waste disposal sites including, but not limited to:
 - 1. Carbonaceous waste dumps.
 - 2. Partings dumps.
 - 3. Fly ash disposal sites, etc.
 - 4. Landfill sites.
- (h) Diversion ditches
- (i) Monitoring sites
- (j) Facilities location (silos, labs, crushers, washbays, etc.)

6. History of mining and reclamation should be documents for all areas. The preferred method is to outline separate areas on the map and assign each a number. Then a summary should be presented listing the following information for each separate area:

- (a) Acreage
- (b) Initial date of disturbance.
- (c) Date of regrading.
- (d) Date of approval of grading.
- (e) Date of topsoiling and approximate depth, source of topsoil.
- (f) Date of mulching and type of mulch.
- (g) Date of seeding.
- (h) Seed mix.
- (i) Date and mix of reseeding.
- (j) Any reworking such as repair of gullies, etc.
- (k) Bond status of areas (type of bond, date of any release and percent released).

7. All areas to be affected by mining and reclamation activities in the coming year should be outlined and labelled.

Annual Report Attachment

A. Please indicate any change in company name or business organization.

None.



B. List the names and addresses of the following:

- | | | |
|----|-------------------------|---|
| 1. | General Manager | <u>Mike Meysing, Plant Manager</u> |
| 2. | Party to Receive Notice | <u>William Sansing, Environmental Manager</u> |

C. List the names and addresses of all officers, owners and/or controllers. Include titles/positions and beginning and ending dates.

Bruce Ballinger, President

Mountain Cement Company

5 Sand Creek Road

Laramie, WY 82070



Introduction

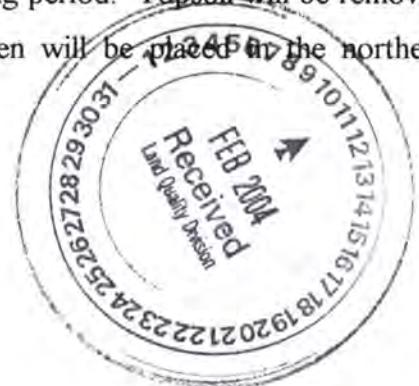
Mountain Cement Company continued to mine at the Weaver Quarry WDEQ/LQD Permit No. 658 during the past report period. The area east of the pit is has been stripped during the 2002-2003 report period and is currently being mined. A new mine and reclamation plan has been submitted to the WDEQ/LQD and approved. Two (2) new monitoring wells have been installed and analysis of the groundwater characteristics is being performed. Mining history and disturbance summary is depicted in two annual report maps, AR-1 and AR-2.

Mine Plan

A revised mine plan has been submitted and approved to mine through the perched drainages. The following mine plan describes the actual mining activities for the 2003-2004 report period and possible future mining operations for the 2004-2005 report period at Mountain Cement Company Weaver Limestone Quarry, Permit No. 658.

Past Mining Activities: Mining continued in the northwest corner of the affected area in the permit area (SW ¼ of section 26) during the 2003-2004 report period. **2.2 acres** were stripped during the report period. A total of **73.9 acres** have been affected to date. Approximately **3,340 CY** of topsoil (TS-7) were stockpiled during the 2003-2004 report period. A total of **35,090 CY** of topsoil and **80,000 CY** of overburden are stockpiled for reclamation use (2,800 CY of topsoil is stockpiled along the side of the haulroad).

Future Mining Activities: Mountain Cement Company plans to continue mining the pit expanding eastward from the western most boundary, according the recently approved mine plan. Mining in this section will terminate at the east end of the pit, defined by the fence line. Next, mining will proceed from the western approved disturbance boundary in the next adjacent section and proceed eastward to the road. **18.3 acres** are proposed to be disturbed during the 2004-2005 reporting period. Topsoil will be removed and stockpiled out of the floodwaters, and toe-ditched. Overburden will be placed in the northern adjacent pit for reclamation purposes.



Reclamation Plan

The following reclamation plan describes actual past reclamation and expected future efforts.

Past Reclamation Activities:

Reclamation has not yet been initiated at this mine site. Limestone mining began during the 1997-1998 report period. Upon completion of mining in the north section, reclamation will occur. Initial backfilling of material has occurred along the north highwall to prepare for reclamation.

Future Reclamation Activities:

No reclamation is predicted to occur. However, overburden removed from the adjacent, southern pit will be used to backfill the northern pit. Initial backfilling of material has begun along the north highwall of the active pit. Limestone mining currently occurs in the east end of the active pit.

Estimated Reclamation Costs

Mountain Cement Company's reclamation performance bond estimate for the current disturbances and expected disturbances during the 2004-2005 report period are itemized in the Appendix, "Itemized Performance Bond Calculations." The total reclamation costs plus an additional twenty percent (20%) contingency cost, is calculated to be approximately **\$218,900**. The bond was increased during October 2003 and is currently \$155,210. If the LQD agrees with the calculated cost amounts, an increase in the bond amount may be required. Mountain Cement Company will await the WDEQ/LQD's determination.



Table I - Description of Weaver Quarry Lands. (Includes acreage projected to be disturbed during the upcoming report period.

Land Description	Acres
Permit Area	1,372.5
<i>Acreage-to-Affect</i>	<i>511.14</i>
Current Affected Acreage	73.9
Proposed Disturbance for 2004-2005	19.4*
Lands Requiring Area Bond Cost	93.3
Lands Requiring Full Incremental Bond Cost	0.0
Lands Requiring Partial Incremental Bond Cost (Reseeding)	0.0
Lands with Requested Full Bond Release, > 2Years	0.0
Lands W/ Approved Full Bond Release	0.0
Subtotal (Incremental Bond Total)	93.3
<i>Total Acreage-to-Affect Remaining</i>	<i>417.84</i>
Total Native Land Remaining in Permit Area	1,279.2
Total of Bonded, Bond Released and Native Lands	1,372.5



* 19.4 acres includes three areas of disturbance (3.1, 5.3, and 9.9 acres, 18.3 acres total) and 1.1 acres for highwall reduction if reclamation occurs on the south side of the pit. Also, the proposed disturbance includes 750 LF of road by 44 feet wide (0.8 acres). See Annual Report Map AR-2, "Reclamation Summary", for details.

Table II - Estimated Reclamation Costs Summary Table for Disturbances through February 28, 2004 and Projected Disturbances for the 2004-2005 Report Period, Weaver Quarry, LQD Permit No. 658.

BOND TYPE	RECLAMATION ACTIVITY	APPENDIX LQD, Guideline #12	AVERAGE ONE-WAY HAUL (Ft)	UNIT	UNIT COST (\$/unit)	TOTAL (\$)
Area Bond	Drilling and Blasting	n/a	n/a	3.1 CY/LF x 6400 LF	\$0.10/BCY	1,984
	Dozing	E	50 ft.	3.1 CY/LF x 6400 LF	\$0.111/CY 10% grade	2,202
	Backfilling and Contouring	C 637E Scraper	1,000 ft.	80,000 CY Overburden	\$0.89/CY 10% grade	53,600
	Topsoil Redistribution	C 637E Scraper	1,000 ft.	35,090 CY Topsoil	\$0.89/CY 10% grade	31,230
	Final Grading	G 16H Motor Grader	n/a	93.3 Acres	\$38.45/acre	3,587
	Scarification	P 16H Motor Grader	n/a	93.3 Acres	\$36.30/acre	3,387
	Asphalt Ripping	I D9R Dozer	n/a	2.4 Acres	\$474.92/acre	1,140
	Demolition	J 200 ft.	n/a	10 (20' section.)	\$69.70/unit	697
	Demolition- Harney Creek Culverts	-	n/a	2, 48-inch CMP	-	8,500
	Demolition- Groundwater Monitoring Wells	L	n/a	-	-	2,140
	Seed, Mulch, Prepare Soil	Q	n/a	93.3 Acres	\$625/acre	58,313
	Fencing- removal	Q	n/a	16,200 LF	\$0.97/Ft	15,571

Total LQD Bond Amount= \$155,210

Total (rounded up to nearest \$100 increment):

Subtotal \$182,351
 20% DEQ Contingency \$ 36,470
\$218,900

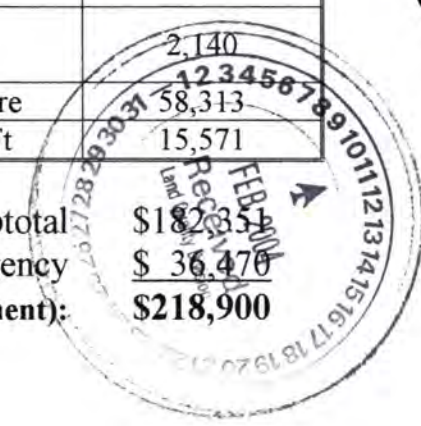


Table III - Current Stockpile Summary Table

Pile	Volume	Placement Date
TS-1	500*	1996-1997
TS-2	1,000	1997-1998
TS-3	1,300	1997-1998
TS-4	10,700	1997-1998
TS-5	10,150	2000-2001
TS-6	8,100	2002-2003
TS-7	3,340	2003-2004
OB-1	35,000	1997-1998,2002-2003
OB-2	25,000	2000-2001,2002-2003
OB-3	20,000	2002-2003
Total Topsoil available for reclamation:		35,090 CY
Total Overburden available for reclamation:		80,000 CY



* This topsoil stockpile has been inadvertently not reported or shown in previous reports.

Table IV - Groundwater characteristics summary table for the *upgradient* monitoring well (SEO Permit #P151433W).
(Installed October 1, 2003)

Parameter	1-14-2004*		
Static Water Depth			
Lab Conductivity @ 25 °C, μ mhos/cm	433		
Total Dissolved Solids @ 180 °C, (mg/L)	270		
Total Alkalinity as CaCO ₃ , (mg/L)	245		
Total Hardness (mg/L) as CaCO ₃ , mg/L	253		
Nitrate + Nitrate as N (mg/L)	1.50		
Total Petroleum Hydrocarbons, TPH 418.1, (mg/L)	<1		

Table V - Groundwater characteristics summary table for the *downgradient* monitoring well (SEO Permit #P151434W).
(Installed October 1, 2003)

Parameter	1-14-2004*		
Static Water Depth			
Lab Conductivity @ 25 °C, μ mhos/cm	411		
Total Dissolved Solids @ 180 °C, (mg/L)	260		
Total Alkalinity as CaCO ₃ , (mg/L)	223		
Total Hardness (mg/L) as CaCO ₃ , mg/L	237		
Nitrate + Nitrate as N (mg/L)	1.96		
Total Petroleum Hydrocarbons, TPH 418.1, (mg/L)	<1		



* Water Quality Report done by Inter-Mountain Laboratories, Inc, 1633 Terra Avenue, Sheridan, Wyoming, 82801.

Itemized Performance Bond Calculations Explanation

I. Pit Backfill and Highwall Reduction

- A. Highwall Reduction: The highwall will be reduced to a 3:1 slope by use of shot rock and overburden and unrecoverable limestone. Using drilling, blasting and dozing methods, a highwall of 12 feet average height and approximately 6,400 hundred feet long may need to be reduced to an initial 3:1 slope. At an average highwall of 15 feet, approximately 3.1 CY per linear foot will be dozed to the base of the highwall. Appendix E, "Calculations for Moving Material With a Caterpillar D9N Dozer", 10% Grade, 50 Ft., was used. To calculate drilling and blasting costs, \$0.10/BCY was used.

$$\text{Drilling and Blasting} = 3.1 \text{ CY} \times 6400' @ \$0.10/\text{BCY} = \$1,984$$

$$\text{Dozing} = 3.1 \text{ CY} \times 6400' @ \$0.111/\text{CY} = \$2,202$$

- B. Backfill of Overburden and Reject Material: A total of 80,000 CY of reject material and overburden will be hauled an average of 1000 feet over the pit area and used to slope the highwalls and cover roads. Appendix C, "Calculations for Moving Materials with a Caterpillar 637E Push-Pull Scraper Fleet", 10% Resisting Grade, 1000 Ft., was used.

$$80,000 \text{ CY} @ \$0.89/\text{CY} = \$53,600$$

- C. Backfill of Topsoil: A total of 35,090 CY of topsoil replacement material will be hauled an average of 1000 feet over the pit area and roads. Appendix C, "Calculations for Moving Materials with a Caterpillar 637E Push-Pull Scraper Fleet", 10% Resisting Grade, 1000 Ft., was used.

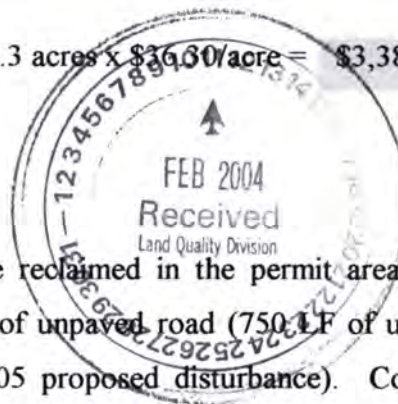
$$35,090 \text{ CY} @ \$0.89/\text{CY} = \$31,230$$

- D. Rough and Final Grading: 93.3 acres will require grading. Appendix G, "Calculations For Final Grading with a Caterpillar 16H Motor Grader", was used.

$$93.3 \text{ acres} \times \$38.45/\text{acre} = \$3,587$$

- E. Scarification: The backfilled material will be scarified with a Caterpillar 16H Motor Grader to relieve compaction prior to topsoil replacement. Appendix P, "Cost Estimate for Scarification of Compacted Surfaces", was used.

$$93.3 \text{ acres} \times \$36.30/\text{acre} = \$3,387$$



II. Access Roads and Demolition

- A. There is approximately 5,110 LF of road to be reclaimed in the permit area. This includes 3,010 LF of paved road and 1,350 LF of unpaved road (750 LF of unpaved haulroad (0.8 acres) is included in the 2004-2005 proposed disturbance). Costs for moving material, grading, and scarification are already included in the previous calculations. Costs for revegetation will be included in the following sections. Only costs are calculated for ripping the 3,010 LF of asphalt. A road, 3,010 feet long by 35 feet wide will yield 2.4 acres. Appendix I, "Cost Estimate for Ripping Asphalt Using a Caterpillar D9R Dozer", was used.

$$2.4 \text{ acres} @ \$474.92/\text{acre} = \$1,140$$

- B. Demolition: There will be no permanent features remaining in the permit area (e.g. culverts). To estimate cost associated with culverts removal, a maximum of 200 feet of culvert will be used (10 units). Appendix J, "Cost Estimate for Culvert Removal", was used. One unit equals 20 feet section of CMP.

$$10 \text{ units (200 Ft.)} @ \$69.70/\text{unit} = \$697$$

There are two, 48-inch culverts, with concrete aprons, installed at the Harney Creek Crossing. It has been estimated in previous reports that it will cost about \$8,500 to remove these culverts.

$$2, 48\text{-inch culverts at the Harney Creek Crossing} = \$8,500$$

- C. **Monitoring Wells:** There are two monitoring wells that will need to be plugged and abandoned once post-mine groundwater characteristics are considered satisfactory by the WDEQ/LQD. Appendix L, "Abandonment and Sealing of Cased Drill Holes and Monitoring Wells", was used.

Abandonment and Sealing of two monitoring wells = \$2,140

III. Revegetation Costs

- A. **Final Revegetation:** Costs associated with the affected section resulting in vegetation. This includes the haulroad(s). Appendix Q, "Revegetation Tasks and Costs", was used.

93.3 acres @\$625/acre = \$58,313

- B. **Fencing:** Fencing will be used to protect the reclamation from livestock grazing or damage until vegetation growth is established and/or bond released. Approximately 16,200 LF of fencing is currently installed around the current disturbance area, specifically, 1/3 of the area-to-affect. When affected area is released from the authority of the WDEQ/LQD (i.e. bond release), the cost estimated will reflect fence removal. Appendix Q, "Revegetation Tasks and Costs", was used.

16,200 Ft. @\$.96/Ft = \$15,571

Subtotal

\$182,351

20% DEQ Contingency

\$ 36,470

Grand Bond Total (rounded up to nearest \$100 increment)

\$218,900

Current Bond Level

\$155,210



WATER QUALITY REPORT

Client: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Project: Well Monitoring

Sample ID: U.W.151433

Lab ID: 0104W00488

Matrix: Water

Condition: Cool/Intact

Date Received: 01/15/04

Date Reported: 01/27/04

Date Sampled: 01/14/04

Time Sampled: 1105

Parameter	Analytical Result	Units	PQL	Method	Analysis		
					Date	Time	Init.
General Parameters							
Lab Conductivity @ 25°C	433	µmhos/cm	5	SM 2510 B	01/16/04	1708	RM
Total Dissolved Solids @ 180°C	270	mg/L	10	SM 2540 C	01/16/04	1010	SV
Total Alkalinity as CaCO3	245	mg/L	1.0	SM 2320 B	01/16/04	1708	RM
Total Hardness as CaCO3	253	mg/L	1.0	SM 2340 B	01/16/04	0613	
Nitrate + Nitrite as N	1.50	mg/L	0.01	EPA 353.2	01/16/04	1459	JF
TPH 418.1	<1	mg/L	1	EPA 418.1	01/26/04	0959	LA



These results only apply to the samples tested.

Reference: "Standard Methods For The Examination of Water and Wastewater", 19th ed., 1995.

EPA 600/R93/100, "Methods for the Determination of Inorganic Substances in Environmental Samples", Aug. 1993.

U.S.E.P.A 600/4-79-020, "Methods for Chemical Analysis of Water and Wastes", 1983.

Reviewed By:

Karen Barten

Karen Barten, Project Manager

Report ID: 010400487

WATER QUALITY REPORT

Client: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Project: Well Monitoring

Sample ID: U.W.151434

Lab ID: 0104W00489

Matrix: Water

Condition: Cool/Intact

Date Received: 01/15/04

Date Reported: 01/27/04

Date Sampled: 01/14/04

Time Sampled: 1040

Parameter	Analytical Result	Units	PQL	Method	Analysis		
					Date	Time	Init.
General Parameters							
Lab Conductivity @ 25°C	411	µmhos/cm	5	SM 2510 B	01/16/04	1718	RM
Total Dissolved Solids @ 180°C	260	mg/L	10	SM 2540 C	01/16/04	1010	SV
Total Alkalinity as CaCO3	223	mg/L	1.0	SM 2320 B	01/16/04	1718	RM
Total Hardness as CaCO3	237	mg/L	1.0	SM 2340 B	01/16/04	0613	
Nitrate + Nitrite as N	1.96	mg/L	0.01	EPA 353.2	01/16/04	1500	JF
TPH 418.1	<1	mg/L	1	EPA 418.1	01/26/04	0959	LA



These results only apply to the samples tested.

Reference: "Standard Methods For The Examination of Water and Wastewater", 19th ed., 1995.

EPA 600/R93/100, "Methods for the Determination of Inorganic Substances in Environmental Samples", Aug. 1993.

U.S.E.P.A 600/4-79-020, "Methods for Chemical Analysis of Water and Wastes", 1983.

Reviewed By:

Karen Barten, Project Manager

WATER QUALITY REPORT

Client: Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Project: Well Monitoring

Sample ID: Trip Blank

Lab ID: 0104W00490

Matrix: Water

Condition: Cool/Intact

Date Received: 01/15/04

Date Reported: 01/27/04

Date Sampled: / /

Parameter	Analytical Result	Units	PQL	Method	Analysis		
					Date	Time	Init.
General Parameters							
Lab Conductivity @ 25°C	<5	µmhos/cm	5	SM 2510 B	01/16/04	1723	RM
Total Dissolved Solids @ 180°C	<10	mg/L	10	SM 2540 C	01/16/04	1010	SV
Total Alkalinity as CaCO3	1.0	mg/L	1.0	SM 2320 B	01/16/04	1723	RM
Total Hardness as CaCO3	<1.0	mg/L	1.0	SM 2340 B	01/16/04	0613	
Nitrate + Nitrite as N	<0.01	mg/L	0.01	EPA 353.2	01/16/04	1501	JF
TPH 418.1	<1	mg/L	1	EPA 418.1	01/26/04	0959	LA



These results only apply to the samples tested.

Reference: "Standard Methods For The Examination of Water and Wastewater", 19th ed., 1995.

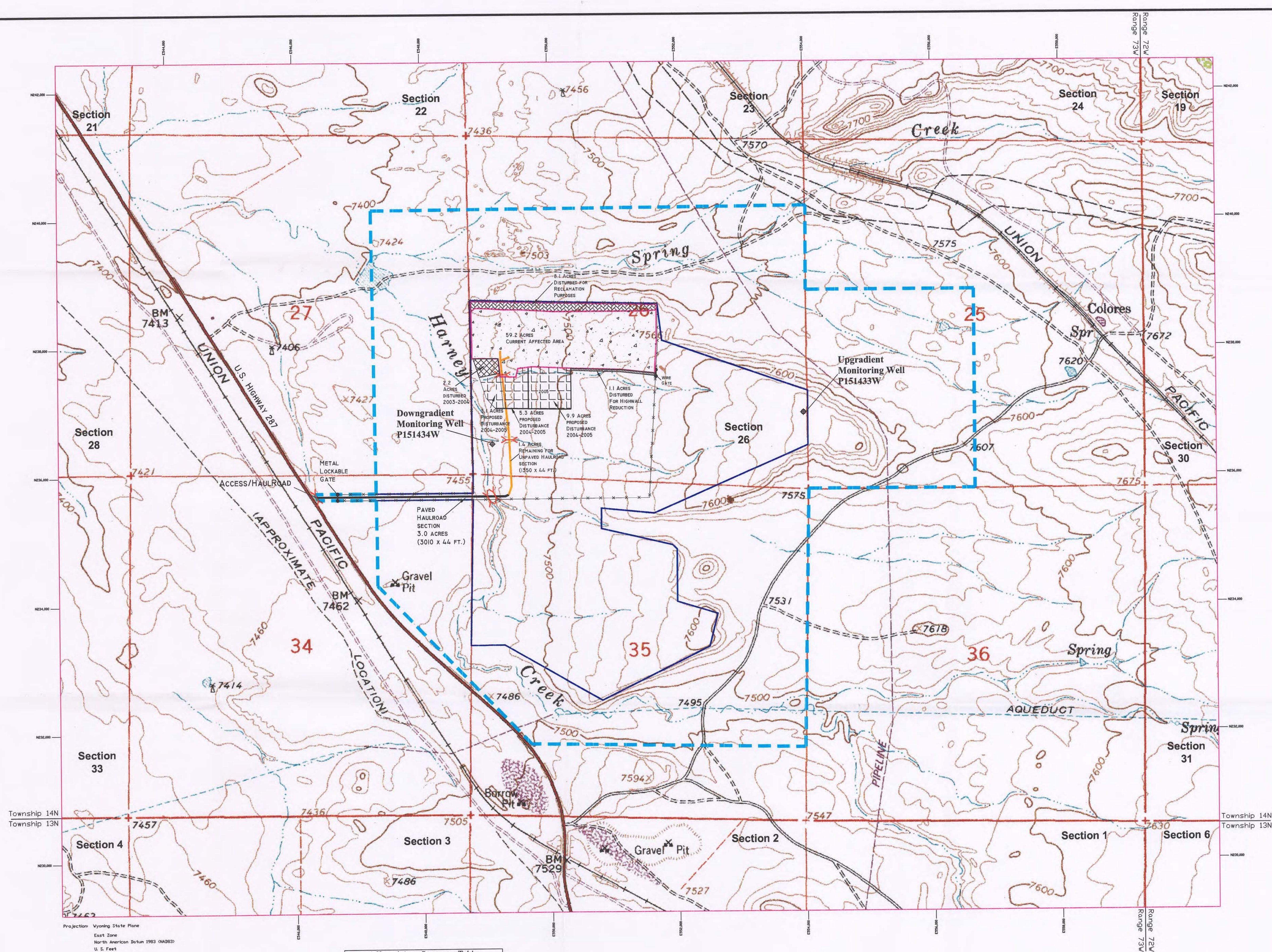
EPA 600/R93/100, "Methods for the Determination of Inorganic Substances in Environmental Samples", Aug. 1993.

U.S.E.P.A 600/4-79-020, "Methods for Chemical Analysis of Water and Wastes", 1983.

Reviewed By:

Karen A. Barten

Karen Barten, Project Manager



LEGEND

- Permit Boundary
- Affected Area Boundary Limit
- Access/Haulroad with Paved Section
- Current Disturbance Area Approximately 59.2 Acres
- Disturbed (Striped) 2003-2004 Approximately 5.3 Acres
- Area Disturbed for Reclamation & Highwall Reduction Currently used for Stockpile Storage Approximately 8.1 Acres
- Area Needed for Highwall Reduction Approximately 1.1 Acres
- Proposed Disturbance 2004-2005 Approximately 15.2 Acres
- Land Graded & Contoured (none)
- Land Topsoiled (none)
- Land Seeded (none)
- Proposed Reclamation (none)
- Culverts
- Gates
- Fence
- Monitoring Wells

SCALE 1" = 800'
CONTOUR INTERVAL 20'

N

0 800 ft

SCALE

Projection: Wyoming State Plane
East Zone
North American Datum 1983 (NAD83)
U. S. Feet

Affected Area Summary Table
(Approved February 29, 1996)

Approved Permit Acres: 1,372.5 Acres

Acreage-to-Affect: 511.14 Acres

Current Affected Area Summary	
Current Affected Area:	59.2 Acres
North Affected Area:	8.1 Acres
2003-2004 Disturbance:	2.2 Acres
Paved Haulroad Section:	3.0 Acres
Haulroad Remaining:	1.4 Acres
Total:	73.9 Acres
Proposed Disturbance 2004-2005:	15.2 Acres
Highwall Reduction (south side):	1.1 Acres
Total:	93.3 Acres

Area Bonding Table

Area Bond Acreage:	69.3 Acres
Partial Incremental Bond Acreage:	0.0 Acres
Partial Incremental Bond Acreage:	0.0 Acres
Haulroad:	4.4 Acres (includes paved section)
Total:	73.9 Acres
Proposed Disturbance 2004-2005:	15.2 Acres
Highwall Reduction (south side):	1.1 Acres
Total:	93.3 Acres
Total Native Land Remaining:	1,279.2 Acres
Total Acreage-to-Affect Remaining:	417.84 Acres

Notes:

- No land was graded, recontoured, topsoiled, and seeded during the 2003-2004 reporting period.
- There is no proposed reclamation during the 2003-2004 reporting period.

Permit #658
Mountain Cement Company
Annual Report Map AR-2
Reclamation Performance Bond Summary
February 28, 2003 - February 27, 2004

Mountain Cement Company
5 Sand Creek Road
Laramie, WY 82070

Red Buttes, Wyo.
USGS Quad Map (Enhanced DRG)
Township 14N, Range 73W, 6th P.M.
Sections 25, 26, 34 & 35
Albany County, Wyoming

February 10, 2004 by MJB



The State
of Wyoming



Department of Environmental Quality

Dave Freudenthal, Governor

Herschler Building • 122 West 25th Street • Cheyenne, Wyoming 82002

ADMIN/OUTREACH (307) 777-7758 FAX 777-3610	ABANDONED MINES (307) 777-6145 FAX 777-6462	AIR QUALITY (307) 777-7391 FAX 777-5616	INDUSTRIAL SITING (307) 777-7368 FAX 777-6937	LAND QUALITY (307) 777-7756 FAX 777-5864	SOLID & HAZ. WASTE (307) 777-7752 FAX 777-5973	WATER QUALITY (307) 777-7781 FAX 777-5973
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December 10, 2003

Mr. William Sansing
Mountain Cement (Weaver Pit)
5 Sand Creek Road
Laramie, WY 82070

RE: Permit No. 658

Dear Mr. Sansing:

Enclosed is an Annual Report Form for your use in reporting all mining and reclamation activities in the referenced permit area since the last report. The new report will be due on or up to thirty days before February 28, 2004, as required by W.S. §35-11-411(a). Upon receipt and review of the report, you will be contacted by a District staff member to arrange the annual inspection.

Please contact me if you have any questions.

Sincerely,

Joyce Holmes
District I
Land Quality Division

/jh
Enclosure